

25STLC09269 25STLC09269

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC09269 Hearing Date: August 13, 2026 Dept: 26

TENTATIVE RULING:

Defendant Shiswa Inc.'s (1) Motion to Compel Responses to Form Interrogatories, Set One, and Request for Sanctions; and (2) Motion to Compel Responses to Request for Admissions, Set One; and Request for Sanctions, are denied without prejudice.

Defendant Shiswa Inc.'s (1) Motion to Compel Responses to Special Interrogatories, Set One, and Request for Sanctions; and (2) Motion to Compel Responses to Request for Production of Documents, Set One; and Request for Sanctions, set for hearing on 08/13/2026, are advanced to today and denied without prejudice on the same grounds.

Analysis:

On December 12, 2025, Plaintiff Marcia Jacoba Colocho Garcia ("Plaintiff") filed the instant action against Defendants Shiswa Inc. ("Defendant Shiswa, Inc.") and Danmar Motor Inn. Defendants filed their Answer to the Complaint on January 8, 2026. Defendant Shiswa then filed the instant (1) Motion to Compel Responses to Form Interrogatories, Set One, and Request for Sanctions; and (2) Motion to Compel Responses to Request for Admissions, Set One; and Request for Sanctions, on July 17, 2026. The Motions were served on Plaintiff by certified mail with return receipt requested on the same date. No opposition has been filed to date. Defendant Shiswa filed Notices of Non-Opposition on August 6, 2026.

Discussion

Defendant Shiswa Inc.'s discovery motions are procedurally and substantively defective such that the Court cannot grant them. First, the Motions were not served with the minimum statutory notice, as required by Code of Civil Procedure section 1005. Service by mail must be made at least 16 court days and five regular days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) The instant Motions were served on July 17, 2026, which was only 16 court days and four regular days before the hearing.

Second, the discovery requests served on Plaintiff do not comply with Code of Civil Procedure section 94, which allows only 35 written discovery requests in the Limited Civil Court unless otherwise authorized by court order or by stipulation. (Code Civ. Proc., § 94, subd. (a); § 95.) Defendant Shiswa Inc. served Plaintiff with more than 35 form interrogatories alone. (Motions, Hoover Decl., Exh. A.) The Court additionally notes that the form interrogatories served on Plaintiff include subparts, which is also a violation of subdivision (a)(1) of Code of Civil Procedure section 94. The Court directs the parties' attention to DISC-0004, which is the official court form for form interrogatories in limited civil cases.

Finally, Defendant Shiswa Inc.'s Motion to Compel Responses to Request for Admissions, Set One; and Request for Sanctions is brought pursuant to Code of Civil Procedure sections 2030.260 and 2030.290, which pertain to interrogatories, not requests for admission.

Based on the foregoing, the Court finds no basis to grant the instant discovery Motions.

Conclusion

Defendant Shiswa Inc.'s (1) Motion to Compel Responses to Form Interrogatories, Set One, and Request for Sanctions; and (2) Motion to Compel Responses to Request for Admissions, Set One; and Request for Sanctions, are denied without prejudice.

Defendant Shiswa Inc.'s (1) Motion to Compel Responses to Special Interrogatories, Set One, and Request for Sanctions; and (2) Motion to Compel Responses to Request for Production of Documents, Set One; and Request for Sanctions, set for hearing on 08/13/2026, are advanced to today and denied without prejudice on the same grounds.

Moving party to give notice.